

6.	26CV0408	SUSAN M. BOURNE-SASANO VS. JANICE LOUISE BOURNE
MOTION TO DETERMINE VALUE AND SEND BUYOUT NOTICE		

Plaintiff, Susan M. Bourne-Sasano (“Plaintiff”), filed a Motion to Determine Value and Send Buyout Notice on July 13, 2026. An Opposition was filed by Defendant, Janice Louise Bourne (“Defendant”), on August 17, 2026. Plaintiff’s Reply was filed on August 25, 2026.

Plaintiff seeks the following orders: 1) appoint Christine Pyle-Banks as Appraiser for the Property located at 5100 Green Valley Road, Placerville, California 95667; 2) assign the costs of appraisal to the Defendant to the extent they oppose partition and set a deadline for their payment within 20 days of the hearing on this Motion, or alternatively, to apportion the costs in accordance with the Parties’ interests if Defendant does not oppose partition; 3) set a hearing date to determine the fair market value, or otherwise order the Property to be sold; and 4) send a buyout notice with a deadline for compliance—under Code of Civil Procedure sections 872.720, 872.810, 873.010, 874.316, 874.317, and 874.318.

Defendant opposes the appointment of an appraiser on the grounds that Plaintiff does not establish the proposed appraiser is “disinterested”, the appraiser’s fee is excessive, and Plaintiff offers no legitimate basis to apportion more than 50% of the appraiser’s fee to Defendant. Further, Defendant asserts the Court cannot schedule a hearing to determine the property’s value until the appraisal is completed, filed with the court, and notice is sent to each party.

Code of Civil Procedure § 874.316 instructs, in part:

(a) Except as otherwise provided in subdivisions (b) and (c), the court shall determine the fair market value of the property by ordering an appraisal pursuant to subdivision (d).

(d) If the court orders an appraisal, the court shall appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court.

Code of Civil Procedure § 874.317 provides, in part:

(a) If any cotenant requested partition by sale, the court shall, after the determination of value under Section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale.

(b) Not later than 45 days after the notice is sent under subdivision (a), any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale.

The Court orders the Parties to meet and confer in an effort to reach a mutual agreement regarding the selection of a disinterested appraiser. Within ten days of the Court's order, the Parties are ordered to mutually exchange a list of two disinterested appraisers, their contact information, curriculum vitae, fee schedule, anticipated time to begin work on the appraisal and turnaround time, and confirmation of willingness and availability to serve as appraiser. Thereafter, the Parties are to meet and confer to select one. The Parties are ordered to file a joint status report identifying the appraiser selected no later than September 24, 2026.

If an agreement cannot be reached, the joint status report shall identify each party's proposed appraiser, a declaration from the appraiser that includes, but is not limited to, their curriculum vitae, disclosing whether they have an interest in the matter, the cost of the appraisal, their anticipated time to begin work on the appraisal and turnaround time, and confirmation of willingness and availability to serve as appraiser.

The hearing on Plaintiff's motion is continued to October 2, 2026.

TENTATIVE RULING #6:

PLAINTIFF'S MOTION IS CONTINUED TO OCTOBER 2, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. PARTIES AND COUNSEL ARE ORDERED TO COMPLY WITH THE COURT'S ORDER TO MEET AND CONFER AS OUTLINED IN THE TENTATIVE RULING.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

September 4, 2026
Dept. 9
Civil Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**